Fort Bend County District Court

Cause No. 2025-CV-0031

George Booker, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	10-23-25
Counsel for defendant:	Marilyn Fox, Ashford & Lyle LLP

Defendant, appearing subject to and without waiving its right to a jury trial, files this Original Answer to Plaintiff's Original Petition and respectfully shows the Court as follows.

General Denial. Pursuant to Texas Rule of Civil Procedure 92, Defendant generally denies each and every allegation contained in Plaintiff's Orignial Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Constitution and laws of the State of Texas.

First Affirmative Defense: Proportionate Responsibility. Defendant asserts that any injury or damage Plaintiff sustained was caused in whole or in part by Plaintiff's own negligence, including fialure to keep a proper lookout and failure to yield in the parking area. Udner Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and Defendant is not liable if that percentage exceeds fifty percent.

Second Affirmative Defense: Sole Proximate Cause. The conduct of a third party over whom Deefndant had no control was the sole proximate cause of the occurrence described in the Petition.

Third Affirmative Defense: Failure to Mitigate. Plaintiff failed to exercise reasonable care to mitiagte damages, and any recovery must be reduced accordingly.